Brazoria County District Court

Cause No. 2024-CV-0029

Joann Norton, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Joann Norton

Date:	May 14, 2024
Location:	Offices of Villa & Dawson LLP
Examining attorney:	Marilyn Fox, Ashford & Lyle LLP
Defending attorney:	Rebecca Hernandez, Villa & Dawson LLP

Q: Please state your full name for the record.

A: I'd rather not give my full name on the record. You can refer to me as the plaintiff.

Q: That's fine for today, but I'll need it in writing before trial. Where were you on the day of the collision?

A: I was driving home from work, going east on the main road through League City, near the intersection by the shopping center.

Q: What were you doing right before the collision?

A: I was stopped at a red light, then the light turned green and I started moving forward. I was maybe going twenty miles an hour, nothing fast.

Q: Describe what happened next.

A: A car coming the other way swerved into my lane. I tried to brake and turn right, but we hit nose to nose, or close to it. It wasn't a huge impact, but my head snapped forward and then back.

Q: Did you lose consciousness or hit your head on anything?

A: No. I didn't black out and my head didn't hit the window or the steering wheel. It was more of a whiplash feeling.

Q: What did you do after the collision?

A: I sat there for a minute with my hands shaking. The other driver got out and said she was sorry. Then the police came and an ambulance came too, and they checked me over at the scene.

Q: Did you go to the hospital that day?

A: Yes, they took me by ambulance to the emergency room. They did X-rays and said nothing was broken, and they sent me home with a prescription and a neck collar.

Q: When did you first notice neck pain?

A: Pretty much right away, but it got worse over the next two days. By the end of the week I couldn't turn my head to check my blind spot without turning my whole body.

Q: What treatment have you received since then?

A: I've been going to physical therapy about three times a week. My doctor also prescribed muscle relaxers and some anti-inflammatories. I still use the collar at night.

Q: How has this affected your daily life?

A: I had to stop going to my weekly rec league, and I can't lift my grandson the way I used to. Sleeping is hard because I wake up with stiffness. I've also missed some shifts at work because of the appointments and the pain.

Q: Have you had any prior neck or back problems?

A: I had some stiffenss years ago from sleeping wrong, but nothing that required a doctor or any treatment.